

**CHAPTER cxxiv.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Edinburgh Corporation. A.D. 1905.
[4th August 1905.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Edinburgh Corporation Order Confirmation Act 1905. Short title.

A.D. 1905.

S C H E D U L E.

EDINBURGH CORPORATION.

Provisional Order to repeal the limitation and restriction of the rate of speed on the Tramways of the Corporation of Edinburgh and to make further provision with respect to the same and for other purposes.

WHEREAS the lord provost magistrates and council of the city and royal burgh of Edinburgh (hereinafter called "the Corporation") are the owners of the tramways within the city:

And whereas by certain Acts relating to the said tramways the rate of speed to be observed thereon is limited as in the said Acts provided:

And whereas it is expedient that the said limitation should be repealed with respect to the said tramways and that the further powers hereinafter mentioned should be conferred:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

Short title.

1. This Order may be cited for all purposes as the Edinburgh Corporation Tramways Order 1905 and the Edinburgh Municipal and Police Acts 1879 to 1903 and this Order may be cited for all purposes as the Edinburgh Municipal and Police Acts 1879 to 1905.

Commence-
ment of
Order.

2. This Order shall commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as "the commencement of this Order."

3. In this Order and for the purposes of this Order the following words and expressions shall have the respective meanings after mentioned:—

A.D. 1905.

Interpreta-
tion.

“The city and royal burgh” and “the city” respectively mean the city and royal burgh of Edinburgh according to the boundaries thereof at the commencement of this Order;

“The Corporation” means the lord provost magistrates and council of the city and royal burgh;

“The Corporation tramways” means the tramways in the city owned by the Corporation.

4. Notwithstanding anything contained in any Act of Parliament relating to the Corporation tramways or any schedule thereto any regulations made by the Board of Trade may provide for a rate of speed greater than the maximum rate specified in any such Act or schedule.

Amendment
of existing
speed limit
on tramways.

5. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the Corporation tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Byelaws of
local autho-
rity.

6. All costs charges and expenses attending the preparation obtaining and confirming of this Order and incidental thereto shall be paid out of the common good or burgh assessments.

Costs of
Order.

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